CONFIDENTIALITY AND NON-COMPETITION POLICY

THIS POLICY is entered into between **Sveltoz Solutions Private Limited.** based at Show Room Right, 83, Deodar, 2nd Floor, Lane 1, behind Royal Enfield, Bhusari Colony, Kothrud, Pune, Maharashtra 411038 and employee/Consultant of the Company. In consideration of my employment/Service by the Company and as a condition of said employment/Service, Company and I, intending to be legally bound, agree as follows:

CONFIDENTIALITY AND NON-COMPETITION POLICY INDEX

SR. NO	CONTENTS	PAGE NO.
1	Confidential Materials and Information	1
2	Employee/Consultant Obligations	3
3	Non-Competition	4
4	Ideas and Inventions	5
5	Written Records	5
6	Publications	6
7	Enforcement	6
8	Termination	6
9	Entire Policy	6
10	Governing Law	7
11	Severability	7

Confidentiality and Non-Competition Agreement

1. **Confidential Materials and Information**

   The following materials and information, whether having existed, now existing, or to be developed or created during the term of my employment/Service by the Company (herein referred to collectively as "Confidential Information") is covered by the Policy:

A. Products. The company is engaged in the business of software development, technology product building, and consulting. The Associate provides expert technological know-how to company. Such services may include, from time to time, coding, formatting, application development, testing, system integration, and other IT-related work. The Parties wish to set forth certain terms relating to their relationship and the delivery of services, including the

protection of company's exclusive relationships with its customers, clients, associates, and strategic partners (collectively referred to as the "Companies Contacts and Customers").The company is engaged in research &

manufacturing of Products. All information relating to existing products and products in various stages of research and development which are not generally known to the public or within the software company which the Company competes (such as know-how, formulas, code, programs, techniques, trade secrets, customer lists, design specifications, procedures, techniques, and processes) and the physical embodiments of such information (such as formulas, codes notes, flow charts, logic, diagrams, procedural diagrams, documentation, printouts, manuals, and any other proposals, and any other written or machine-readable expressions of such information as are fixed in any tangible media).

B. Other Products. All information relating to Software formulas, codes program techniques, and other proprietary products or services, whether existing or in various stages of research and development, which are not generally known to the public or within the software industry or trade in which the Company competes (such as know-how, formulas, codes, programs specifications, data, designs, processes, techniques, methodologies and strategies) and the physical embodiments of such information.

C. Business Procedures. All information concerning or relating to the way the Company conducts its business and which is not generally known to the public (such as internal business procedures and practices, supplier names and other vendor information, financial information, distributor information consultant and employee data) and the physical embodiments of such information.

D. Marketing Plans and Customer Lists. All information pertaining to the Company's marketing plans and strategies, forecasts and projections, marketing and pricing practices, procedures and policies, financial data, credit terms, goals and objectives, quoting practices, procedures and policies, and customer data including the customer lists, contracts, representatives, requirements and needs, specifications, data provided by or about prospective existing or past customers and other contract terms applicable to such customers, and the physical embodiments of such information (such as agreements, customer lists, printouts, databases, formulas, codes, programs ,marketing plans, marketing reports, strategic business plans, marketing analyses and management reports, trade show or exhibit attendee listings, listings of potential customers and leads, and any other written or machine-readable expressions of such information as are fixed in any tangible media).

E. Customer Information. Any information in whatever form provided to the Company by a customer in confidence or which is not generally known to the public.

F. Other Information Not Generally Known. Any information in addition to the foregoing which is not generally known to the public or within the Software industry or trade in which the Company competes which gives or may give the Company an advantage over its competitors, and the physical embodiments of such information in any tangible form, whether written or machine-readable in nature.

2. Employee/Consultant Obligations

During my employment or service with the Company, I acknowledge and agree that I have had, and will continue to have, access to Confidential Information and materials and will occupy a position of trust and confidence with respect to the Company's affairs and business. I have and will continue to take the following steps to preserve the confidential and proprietary nature of the Confidential Information and materials:

A. Non-Disclosure. During or after my employment with the Company, I will not use, disclose or transfer any of the Confidential Information or materials other than as authorized by the Company within the scope of my duties with the Company, and will not use in any way other than in the Company's business any Confidential Information, including information or material received by the Company from others and intended by the Company to be kept in confidence by its recipients. I understand that I am not allowed to sell, any products or service (in any form) which embody in whole or in part any Confidential Information or materials.

B. Prevent Disclosure. I will take all reasonable precautions to prevent the inadvertent or accidental exposure of Confidential Information.

C. Removal of Materials. I will not remove any Confidential Information from the Company's premises or make copies of such materials except for use within the scope of my duties with the Company in the Company's business.

D. Returns of Materials. All documents and other tangible forms of confidential information, all copies, whether in written, electronic or other form or media, thereof, shall be and remain the sole and exclusive property of Company, and shall be promptly returned or destroyed by me upon the written request of Company or on ceasing to be an Employee/ consultant of the Company. With respect to any electronic or computer records of or relating to Confidential Information, without limiting the foregoing, I shall shred, permanently delete

or otherwise irretrievably destroy and render unreadable all such copies or records from all computers, servers, storage devices and media, except to the extent that through the exercise of reasonable commercial efforts the same cannot be removed from databases or records. To the extent that I am unable to return or destroy any such digital data, the obligation of Confidentiality hereunder shall survive with respect to such information until it is either returned or destroyed.

E. Disclosure Of "Moonlighting". During my employment/Service with the Company, I agree to disclose to the Company any other consulting work, directorship, or other similar relation with another person or entity.

F. Conflicting Obligations and Rights. I agree to inform the Company of any apparent conflicts between my work for the Company and (i) any obligations I may have to preserve the confidentiality of another's proprietary information or materials or (ii) any rights I claim to any inventions or ideas before performing that work (or causing it to be performed). Otherwise, the Company may conclude that no such conflict exists, and I agree thereafter to make no such claim against the Company. The Company shall receive such disclosure in confidence and consistent with the objective of avoiding any conflict of obligations and rights or the appearance of any conflict of interest.

3. Non-Competition

A. Covenants Not to Compete. I acknowledge and agree that I will not, during the term of my employment/Service with the Company and for a period of two (2) years immediately thereafter, either as an employee, employer, consultant, agent, principal, partner, stockholder, corporate officer, director, Ex-Director immediate family member of any person who is or was the part of SSPL or anything of that sort in any other individual or representative capacity ("directly or indirectly"), either (i) engage or participate or associate in any business that is in competition in any manner whatsoever with the business of the Company and / or (ii) have any professional contract or relationship with any Competitors / Suppliers / Customers of the Company for myself, directly or indirectly, or with or in conjunction with any other person, persons, firm, company, partnership or corporation engaged in any business that is in competition in any manner with the business of the Company or from time to time handled by the Company during the term of my employment with the Company. If you wants to join the any competitor you have to take the consent from the management representative in written.

B. Covenants Not to Solicit. While employed/appointed by the Company and for a period of two years following the termination of such employment/Service, I shall not, directly or indirectly, request, cause, solicit or induce any other employee/consultant of SSPL, for me or the Company to perform work or services for any person or entity other than the Company.

4. **Ideas and Inventions**

I agree that all Confidential Information and all other discoveries, inventions, ideas, concepts, trademarks, service marks, logos, processes, computer programs or software, apparatuses, items of manufacture or composition of matter, or any new uses there for or improvements thereon, or any new formulas, codes, programs, techniques, designs or modifications or configurations of any kind, or work or authorship of any kind, including without limitation, compilations and derivative works, whether or not patentable or copyrightable, conceived, developed, reduced to practice or otherwise made by me, either alone or with others, and in any way related to the present or proposed products, programs, services or business of the Company or the tasks assigned to me during the course of my employment by the Company, during the period of my employment by the Company, whether or not conceived, developed, reduced to practice or made during my regular working hours or on the Company's premises (collectively "Inventions"), and any and all services and products which embody, emulate or employ any such Invention or Confidential Information shall be the sole property of the Company and all copyrights, patents, patent rights, trademarks and reproduction rights to, and other proprietary rights in, each such Invention or Confidential Information, whether or not patentable or copyrightable, shall belong exclusively to the Company. I agree that all such Inventions shall constitute works made for hire under the copyright laws of India and hereby assign and, to the extent any such assignment cannot be made at the present time, agree to assign, the Company any and all copyrights, patents and other proprietary rights I may have in any such Invention, together with the right to file and/or own wholly without restrictions applications for Indian and foreign patents, trademark registration and copyright registration and any patent, or trademark or copyright registration issuing thereon.

5. **Written Records**

I shall make and maintain adequate and current written records of all Inventions and Confidential Information which by virtue of Section 4 above the sole property of the Company are and shall disclose same promptly, fully and in writing to the Company’s Head - HR & Commercial or other duty authorized officer. During and after the term of my employment/Service by the Company, I shall execute, acknowledge, seal and deliver all documents, including, without limitation, all instruments of assignment, patent and copyright applications and supporting documentation, and perform all acts, which the Company may request to secure its rights hereunder and to carry out the intent of this Policy. In furtherance of my undertaking in the immediately preceding sentence, I specifically agree to assist the Company, at the Company's expense, in every proper way to obtain for its sole benefit, in any and all countries, patents, copyrights or other legal protection for all Inventions and Confidential information which by virtue of

Section 4 hereof are the sole property of the Company and for publications pertaining to any of them. In no circumstances shall I be entitled to any of them. In no circumstances shall I be entitled to any further compensation for any action taken under this Section 5.

6. Publications

I agree not to submit any writing for publication or deliver any speech that contains any information relating to the business of the Company, unless I receive advance written clearance from the Head - HR & Commercial of the Company or other only authorized officer.

7. Enforcement

A. Potential Dismissal. I acknowledge that I am subject to immediate dismissal by the Company for any breach of this rules and regulations of the policy and that such a dismissal will not relieve me from my continuing obligations under this Policy or from the imposition by a court of any judicial remedies, such as money damages or an injunction for such a breach.

B. Injunctive Relief. I understand that monetary damages will not be sufficient to avoid or compensate for the unauthorized use or disclosure of any of the Confidential Information or materials and that injunctive relief would be appropriate to prevent any actual or threatened use or disclosure of such information or materials.

C. Warranty or Nondisclosure of Third-Party Confidential Information. I agree to indemnify and hold harmless, the Company form any claim or recovery by any third party referring or relating to the alleged disclosure or use of any Confidential Information belonging to a third party.

8. Termination

Notwithstanding anything contained herein to the contrary, in consideration of my employment/Service with the Company, I agree to confirm to the rules and regulations of the Company and I further understand and agree that my employment/Service and compensation/Professional fees can be terminated as provided by my Employment/Service Agreement with the Company. In the event that I leave the employ of the Company by my own request, or at the request of the Company or otherwise, or create condition so that Company terminates my employment the foregoing covenants shall remain in full force and effect as independent covenants, regardless of any other covenants, terms or conditions in this Policy or any other Agreement.

9. Entire Policy

This is my entire agreement with the Company with respect to its subject matter and memorializes the entirety of any prior oral or written, express or

implied negotiations, understandings and Policies. This Policy may not be changed in any respect except by a written agreement signed by the Director, Head - HR & Commercial of the Company or other-duly-authorized-officer.

10. Governing Law

This rules and regulation of the Policy shall be governed by and construed in accordance with the laws of India. The Company alone shall have the right to initiate any legal action or proceedings arising out of or in connection with this Policy before the competent Courts at Pune, India, and such Courts shall have exclusive jurisdiction. The Employee/Consultant hereby irrevocably submits to the jurisdiction of the said Courts and waives any objection thereto.

11. Severability

The provisions of this Policy shall be deemed severable, and the invalidity or unenforceability of any provision shall not affect the validity or enforceability of the other provisions hereof In the event of the invalidity or unenforceability of any provision of this Agreement, the parties agrees to substitute for such invalid or unenforceable provision a valid and enforceable provision most nearly approximating in intent and effect the invalid or unenforceable one.

I understand that the Company may waive some of the requirements expressed in this Policy, but that such a waiver to be effective must be made in writing by Head - HR & Commercial or other duly authorized officer of Company and should not in any way be deemed a waiver of the Company's right to enforce any other requirements or provisions of this Policy.

12. In the event of any breach of the provisions of this Policy, I shall immediately pay to the Company the actual damages suffered by the Company as a result of such breach. I acknowledge that I have received consideration for this Policy as part of my salary/Professional charges and shall have no right to dispute the amount of actual damages determined by the Company.

WHEREFOR, This Policy is applicable for Employee/Consultant of the SSPL. I acknowledge that I have read -this Agreement carefully and understanding that this document is a legally binding Policy, and that the understandings and rules expressed in this document are binding upon me.

For: Sveltoz Solutions Pvt. Ltd (SSPL)

By: **HR-Head.**
Sign :

Employee/Consultant Name:
Sign: